



**KANDIVLI EDUCATION SOCIETY'S
SHRI JAYANTILAL H. PATEL LAW COLLEGE**

**Mob Lynching in India: Statutory Framework under the
Bharatiya Nyaya Sanhita, 2023**

**A Project submitted in partial fulfilment of the requirements
for The Sixth Semester of the BA LL.B COURSE**

ACADEMIC YEAR: 2025-2026

By

NAME: KAVERISINGH

ROLL NO: 40 DIVISION:C

Under the Supervision of

Adv. Rajeshree Deda

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Introduction

In July 2024, India turned a new page in its judicial history by discarding the colonial-era Indian Penal Code (IPC) and enforcing the Bharatiya Nyaya Sanhita (BNS). This shift was not merely administrative; it represented a deeper societal need to confront crimes that previous laws ignored. For years, vigilante justice and mob violence operated in a legal vacuum, often treated no differently than ordinary street fights or riots. The BNS has finally closed this loop. By institutionalizing specific penalties for what we commonly call 'lynching,' the state has acknowledged that collective hatred is a distinct poison requiring a distinct antidote.

Legal Framework and Recognition

The core of this reform lies in Section 103(2), a provision designed to pin accountability on faceless crowds. Previously, the defense strategies in mob violence cases relied heavily on the confusion of the moment—claiming it was impossible to know who struck the fatal blow. The new law disarms this argument. It explicitly states that when five or more individuals gather with a shared intent to kill based on prejudice—be it caste, community, or personal belief—they are all equally culpable. The law no longer sees a 'crowd'; it sees a coordinated unit of offenders, stripping away the defense of anonymity.

Penal Measures and Deterrence

To match the severity of the crime, the BNS has introduced uncompromising penalties. The statute mandates that anyone convicted under Section 103(2) faces life imprisonment or the death penalty, in addition to a substantial fine. This effectively categorizes hate-driven mob murder as a capital offense, signaling zero tolerance from the judicial system. Furthermore, the legislation anticipates scenarios where victims survive. Section 117(4) specifically targets non-fatal mob attacks resulting in 'grievous hurt,' prescribing prison terms of up to seven years. This ensures a comprehensive legal net that catches all forms of group violence, regardless of the lethal outcome.

Conclusion

Ultimately, the specific inclusion of mob lynching in the BNS is a victory for constitutional values over majoritarian impulses. It transforms the abstract promise of 'equality before law' into a concrete enforcement mechanism. By equating mob justice with the highest crimes known to the state, the new code sends a stern warning: the power to punish belongs solely to the judiciary, never to the street. This legal evolution is essential for safeguarding the dignity of every citizen against the tyranny of the crowd.

References

[1] Section 103, The Bharatiya Nyaya Sanhita, 2023 (Act No. 45 of 2023). [[View Source](#)]

[2] Ibid, Section 103(2).

[3] Section 117(4), The Bharatiya Nyaya Sanhita, 2023. [[View Source](#)]

[4] PRS Legislative Research, 'The Bharatiya Nyaya Sanhita, 2023 Bill Summary'. [[View Source](#)]